

WEBSITE TERMS AND CONDITIONS OF SUPPLY FOR CANDIDATES

OUR TERMS

1. THESE TERMS

- 1.1 **What these terms cover.** This document (together with the documents referred to in it) tells you information about us and the legal terms and conditions (**Terms**) on which we make available our services to you through our website (which includes any microsites or subsections of this website which are hosted within our web environment) www.ngsolicitors.com (**Website**). These Terms will apply to any contract between us for the use of our services by you (**Contract**).
- 1.2 **Why you should read them.** Please read these Terms carefully and make sure that you understand them before you start to use our Website. Please note that before using our services you will be asked to agree to these Terms. If you do not accept these Terms you will not be able to use the services that we make available on our Website.
- 1.3 **Other applicable terms.** These Terms make reference to our Privacy Policy, Cookie Policy and Terms of Use & Acceptable Use Policy, all of which also apply to your use of our Website. You should read these carefully as they include important terms which apply to your use of our services.

2. INFORMATION ABOUT US AND HOW TO CONTACT US

- 2.1 **Who we are.** We are NQ Recruitment Ltd (trading as NQSolicitors.com) a company registered in England and Wales. Our company registration number is 09829178 and our registered office is at 25 Southampton Buildings, London, England, WC2A 1AL. We are an employment agency. We operate the website www.ngsolicitors.com, which provides a platform through which you can be 'matched' with and engaged by hirers.
- 2.2 **How to contact us.** If you have any queries or concerns about our Website, or you need to contact us for any other reason, please write to us at info@ngsolicitors.com.
- 2.3 **How we may contact you.** If we have to contact you we will do so by telephone or by writing to you at the email address you provided to us when you confirmed your contact details on our Website.
- 2.4 **"Writing" includes emails.** When we use the words "writing" or "written" in these Terms, this includes emails.

3. OUR CONTRACT WITH YOU

- 3.1 **Your profile.** To create an anonymous profile on our Website you will be guided through the following steps:

- (a) Registering with the Website, activating your account by verifying your email address and confirming your contact details;
- (b) Uploading a copy of your CV in either Word or pdf format;
- (c) Creating your candidate profile by inputting details into 10 different fields (such as your academic record and your experience to date);
- (d) Indicating your work preferences (such as your minimum salary requirement and the type of firm you would like to work for);
- (e) Reviewing the information you have entered in the previous four steps and accepting these Terms by ticking the appropriate box immediately prior to publishing your anonymous profile on the Website by clicking the 'Go Live!' button.

Once you have completed the steps above you will receive a welcome email which confirms that your anonymous candidate profile has been created and published on our Website. The Contract between you and NQR will be formed and become binding at the point at which you confirm your acceptance of these Terms by ticking the appropriate box (see 3.1(e) above). Please note that, once uploaded to our Website, your CV and any personal data contained within it will remain completely confidential, and will only be made available to hirers if you consent to its release to a hirer as described in clause 3.2.

Before you publish your anonymous profile on our Website by clicking on 'Go Live!', you should carefully read these Terms, and you may only create a profile if you are at least 18 years of age and are fully competent to enter into and comply with the Contract between us and the other documents and policies referred to in these Terms. If there are any terms you do not understand or do not wish to agree to, please contact us at info@nqsolicitors.com.

- 3.2 **How the service works.** Once you have activated your account, uploaded your CV, built your candidate profile, indicated your work preferences and published your anonymous candidate profile by clicking on 'Go Live!', your anonymous candidate profile will be viewable by hirers using our Website whose vacancy details and candidate filters match your candidate profile and work preferences. If the hirer, having viewed your anonymous candidate profile, requests to see your CV, you will receive an email notification from us with details of the hirer in question and the vacancy for which they are hiring. You can then review this information and decide whether you would like to either 'accept' or 'decline' the CV request. Should you accept the CV request from the hirer in question we will send a copy of your CV, (to which we may make minor formatting amendments), to the hirer. Prior to sending your CV to the hirer, we will ask you to confirm that: (i) you have not given anyone else authority to pass your details (including your CV) to that particular firm within the preceding 12 months; and (ii) you will not contact the firm in question yourself (as per clause 7.4).

Details of requests for your CV made by hirers that match your candidate profile and work preferences will be available to view on your dashboard, which you can access via our Website.

Please note that we make no guarantees that your candidate profile will be matched against a search made by a hirer.

3.3 **Use of your data.** By using the Website you consent to the personal data you upload to the Website being shared with relevant organisations as set out in these Terms.

3.4 **Information to be provided by you.** When you accept a new role which comes about as a result of your use of our Website, you shall provide us with such information in relation to the position as we may reasonably require. Such information should be: provided to us within seven days of our request; provided in writing; and provided in a clear and concise manner. We may contact you using the contact details you provided to us via our Website.

4. PROVIDING THE SERVICES

4.1 **When the Contract will end.** The contractual relationship between us will come to an end either: at the point at which you start your new role with a firm as a result of your use of the Website; or at the point you end the Contract (as per clause 6) or we end the Contract (as per clause 7.5).

4.2 **What will happen if you do not give required information to us.** The information that we ask you to provide when you create your profile on our Website (as described in clause 3.1) is necessary in order for us to be able to provide our services. It is important that you provide a copy of your CV in particular, as your profile on our Website will not be active unless we have it. You must ensure that the information contained in your CV is correct, complete and accurate. We will not be responsible for not providing any part of the services if this is caused by you giving us inaccurate, incomplete or incorrect information.

4.3 **Reliance on content on our Website.** We do not make any warranties, conditions or guarantees as to the accuracy of any materials or information displayed on our Website. Such content is not intended to amount to advice upon which reliance should be placed. We will therefore have no liability or responsibility for any reliance placed on such content by anyone using our Website or by anyone who may be informed of such content.

5. NO CHARGES

We will not charge you for: use of our Website; receiving details of vacancies with firms whose searches match against your candidate profile and preferences; indicating that you would like us to release your details to such firms; or accepting a new role which comes about as a result of your use of our Website.

6. CANCELLATION OF THE CONTRACT

You can cancel your Contract with us at any time by contacting us at info@nqsolicitors.com.

7. INTELLECTUAL PROPERTY RIGHTS AND RESTRICTIONS

7.1 You hereby acknowledge and agree that we own all intellectual property rights in our Website (including in materials published on our Website) and in relation to the services we provide. You must not use any part of the information or materials on our Website for commercial purposes without obtaining a licence from us to do so.

7.2 The material on our Website is for individual use by you and is not intended for distribution to or sharing with third parties.

7.3 You must not, under any circumstances, remove any copyright notices appearing on our Website. In some cases we may allow you (in our absolute discretion) to distribute material and information which appears on our Website; should you wish to do so you should contact us at info@nqsolicitors.com. Under no circumstances will you be granted permission to disclose material or information from our Website to any commercial trading entity (including, without limitation, any recruitment agent), and you hereby agree not to disclose such content to any such third party.

7.4 In the event that your profile on our Website matches with a search made by a hirer and a request is made for your CV (following which we will notify you via email with details of the firm in question and the vacancy, as described in clause 3.2), **you hereby acknowledge and agree that you will not contact the firm in question.** As mentioned in clause 3.2, we will contact the firm in question on your behalf.

7.5 In the event of the breach of any of these Terms by you, we reserve the right to either remove your profile from our Website or suspend your use of the Website indefinitely, at our absolute discretion.

8. OUR RESPONSIBILITY FOR LOSS OR DAMAGE SUFFERED BY YOU

8.1 **We do not exclude or limit in any way our liability to you where it would be unlawful to do so.** This includes liability for death or personal injury caused by our negligence or the negligence of our employees, agents or subcontractors; for fraud or fraudulent misrepresentation; and any other liability that cannot be excluded or limited under English law.

8.2 **We are not liable to you for any indirect or consequential loss, including loss of profits.**

9. HOW WE MAY USE YOUR PERSONAL INFORMATION

9.1 How we will use your personal information. For information on how we will process your personal information please refer to our Privacy Policy [https://nqsolicitors.com/pdf/Website%20Privacy%20Policy%20\(Final\).pdf](https://nqsolicitors.com/pdf/Website%20Privacy%20Policy%20(Final).pdf). By using our Website you:

- (a) consent to us processing your information in accordance with our Privacy Policy; and
- (b) warrant that all data and information provided by you is complete, correct and accurate.

9.2 We will only give your personal information to third parties where the law either requires or allows us to do so.

10. OTHER IMPORTANT TERMS

10.1 We may assign this agreement to someone else. We may assign our rights and obligations under these Terms to another organisation. We will always tell you in writing if this happens and we will ensure that the assignment will not affect your rights under the Contract.

10.2 Variation of these Terms. We reserve the right to amend these Terms from time to time, provided that such amendment does not unfairly affect you. The Terms in force at the time you use our Website will apply to the Contract between us. You are expected to check this page from time to time to ensure you understand the Terms which apply at that time.

10.3 Nobody else has any rights under this Contract. This Contract is between you and us. No other person shall have any rights to enforce any of its Terms, whether under the Contracts (Rights of Third Parties) Act 1999 or otherwise.

10.4 If a court finds part of this Contract illegal, the rest will continue in force. Each of the paragraphs of these Terms operates separately. If any court or relevant authority decides that any of them are unlawful, the remaining paragraphs will remain in full force and effect.

10.5 Even if we delay in enforcing this Contract, we can still enforce it later. If we do not insist immediately that you do anything you are required to do under these Terms, or if we delay in taking steps against you in respect of your breaking this Contract, that will not mean that you do not have to do those things and it will not prevent us taking steps against you at a later date.

10.6 Which laws apply to this Contract and where you may bring legal proceedings. These Terms are governed by English law and we both agree to submit to the exclusive jurisdiction of the English Courts.